

HOUSE No. 5595

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 21, 2026.

The committee on Ways and Means, to whom was referred the Bill prioritizing patient access to care (House, No. 2370), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5595) [Representatives Smola of Warren, McKenna of Sutton, Pease of Westfield, Marsi of Charlton, Sullivan-Almeida of Abington and Xiarhos of Barnstable dissent].

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prioritizing patient access to care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12N of chapter 112 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in lines 1 to 9, inclusive, the words “no
3 abortion may be performed except by a physician, and only if in the best medical judgement of
4 the physician it is: (i) necessary to preserve the life of the patient; (ii) necessary to preserve the
5 patient’s physical or mental health; (iii) warranted because of a lethal fetal anomaly or diagnosis;
6 or (iv) warranted because of a grave fetal diagnosis that indicates that the fetus is incompatible
7 with sustained life outside of the uterus without extraordinary medical interventions” and
8 inserting in place thereof the following words:- an abortion may be performed by a physician
9 based upon the professional judgment of the physician.

10 SECTION 2. Said chapter 112 is hereby further amended by striking out section 12N1/2
11 and inserting in place thereof the following section:-

12 Section 12N1/2. No medical review process shall override the professional judgment of a
13 treating physician and a patient or the patient's health care proxy to provide an abortion
14 consistent with section 12N.

15 SECTION 3. Section 12P of said chapter 112, as appearing in the 2024 Official Edition,
16 is hereby amended by striking out the second paragraph.